



Utica First Insurance Company
PO Box 851, Utica, NY 13503-0851
Telephone 800-456-4556/Fax 315-768-4408
www.uticafirst.com

POLICY NUMBER: ULC4865409950

STONEPATH HOLDINGS

4118 Station
Medina, NY 14103

Insured:

STONEPATH HOLDINGS

4118 Station
Medina, NY 14103

Agent:

CEDARLINE HOLDINGS
PO Box 405
Warwick, NY 10990

Utica First Insurance Company
PROVISIONS REQUIRED BY LAW TO BE STATED IN THIS POLICY

Policy Jacket Insert

This policy is issued by Utica First Insurance Company (the "Company"), an Advance Premium Co-operative Property and Casualty Insurance Company having Bylaws and special regulations relating to meetings of members, election of directors, rights and obligations of members as printed below. The holder of this policy is not subject to liability for assessment.

Qualification for Membership. Any natural person or Organization (as that term is hereinafter defined) that becomes a policyholder of one or more policies of insurance issued by the Company within its authority pursuant to the Company's Charter and licenses is a member of the Company (a "Member" or "Members"). The status as Member of any natural person or Organization shall cease immediately at the time such natural person or Organization ceases to hold at least one policy of insurance issued by the Company. Non-residents who own property within the territory in which the Company may do business may be insured therein and shall have all the rights and privileges of Members of the Company and be accountable as are other persons insured therein, but shall not be eligible to hold office in the Company.

Membership by an Organization. The term "Organization" means any legal entity other than a natural person that is authorized to insure in an advance premium corporation under Section 6626(a) of the Insurance Law, or any successor statute, together with multiple named insureds with joint interests under one or more policies of insurance. Each Organization that becomes a Member of the Company may designate in writing one officer, trustee, board member or legal representative (an "Authorized Representative") of such Organization who is to be recognized by the Company pursuant to Section 6626(b) of the Insurance Law or any successor statute to act for or on behalf of such Organization for the purpose of membership. Only the Authorized Representative of an Organization which is a Member may perform any act or exercise any right on behalf of the Organization which is associated with such Organization's status as Member.

Annual Meeting. The annual meeting of the Members of the Company is held at the Home Office of the Company at 4:00 p.m. on the first Monday in March of each year, if not a legal holiday, and if a legal holiday, then on the next succeeding Monday which is not a legal holiday. At the annual meeting the Members shall elect Directors and transact such business as may properly come before the meeting.

Special Meetings. Special meetings of the Members of the Company may be called at any time by the Chief Executive Officer and two Directors other than the Chief Executive Officer and shall be called at any time upon written request of at least ten of the Members. The call for the meeting shall state the time, place, and object of the meeting. All special meetings of the Members of the Company shall occur not more than 60 days following the date of the call for the meeting and shall take place at the Home Office.

Notice of Meetings. Notice of the time, place and object of each annual and special meeting of the Members of the Company shall be published twice each week for two successive weeks immediately preceding such meeting, in at least two newspapers published in Oneida County, New York.

Voting. Except as otherwise required by law or the Company's Charter, each Member is entitled to one vote only upon each matter submitted to a vote at any meeting of the Members. Except for the election of Directors, all questions are decided by a vote of a majority of the Members voting thereon.

Number and Qualification of Directors. The Board of Directors shall consist of not less than nine nor more than fifteen Directors, the exact number within such range to be determined from time to time by resolution of the Board of Directors, provided that no decrease in the number of Directors shall shorten the term of an incumbent Director. Each Director shall be a Member of the Company and a resident of the territory in which the Company is licensed to do business. At all times, a majority of the Directors shall be citizens and residents of New York State.

Election of Directors. The Board of Directors shall be divided into three (3) groups which are as equal in size as possible. Each Director shall serve for a term of three (3) years beginning on the date of the annual meeting at which he is elected, and within each group, the terms of the Directors shall be coextensive. The terms for each group shall be staggered such that only one group shall be elected at each annual meeting of the Members. At the annual meeting of Members, each Member in attendance shall cast one vote for each vacancy on the Board of Directors. Those candidates receiving a plurality of the votes cast shall be elected.

Nomination of Directors. Only persons who are nominated in accordance with the following procedures shall be eligible for election as Directors. Nominations of persons for election to the Board of Directors of the Company may be made (a) at a meeting of Members by or at the direction of the Board of Directors or (b) at a meeting of the Members by any Member of the Company who complies with the following notice. Nominations other than those made by or at the direction of the Board of Directors must be filed with the Secretary of the Company not less than 30 nor more than 60 days before the Annual Meeting, provided such nominations be in writing and endorsed by not less than 15 Members of the Company (a "Member Notice"). Such Member Notice shall set forth (a) as to each person whom the Members propose to nominate for election or re-election as a Director, (i) the name, age, business address and residence address of such person, (ii) the principal occupation or employment of such person, (iii) whether such person is a Member of the Company, such person's name and address as they appear on the Company's records and evidence whether such person is a citizen and resident of New York State and of the territory in which the Company is licensed to do business and is otherwise qualified to be a Director of the Company, and (iv) any relationship or affiliation that such proposed nominee has with the persons nominating him; and (b) as to the Members giving notice, the Members' name and address, as they appear in the Company's records. No persons, except those whose names have been identified in a notice which was filed as provided in this section, are eligible for election. The term "Qualified Persons" shall mean natural persons who are qualified to serve as Directors of the Company pursuant to the Charter, Bylaws, or applicable

Cedarline Motorworks

shall issue policies without contingent mutual liability of the policyholders for assessment.

Procedure for Amendment. The Bylaws may be amended by addition, alteration or repeal only by a majority vote of all of the Members who are present in person at any Annual Meeting of the Members or other stated meeting or any special meeting duly called for such purpose except that the Board of Directors, at any regular or special meeting, may amend the Bylaws as to any provisions which do not impair the Members' rights or enlarge their obligations under insurance policies by a vote in favor of such amendment of not less than two-thirds of the Directors present, provided that notice of the substance or character of the proposed change has been given in the call for such meeting, and provided that such amendments are approved by the Superintendent of Insurance of the State of New York.

Utica First Insurance Company

This policy jacket with the Declarations Page (or Renewal Certificate page), policy conditions and definitions, and forms and endorsements, if any, issued to form a part thereof, completes this policy.

To the extent that coverage in this policy replaces coverage in other policies terminating noon standard time on the inception date of this policy, coverage under this policy shall not become effective until such other coverage has terminated.

Renewal Certificates

This initial policy expires on the date shown on the Declarations Page and coverage may be continued to subsequent annual policy periods by the use of an Annual Renewal Certificate. The Declarations Page of the Renewal Certificate will replace all previously issued policy Declarations and will apply only to accidents, occurrences, or losses which happen during the policy period shown on the Renewal Certificate.

Furthermore, the policy will apply only to those coverages for which a limit of insurance and/or a limit of liability or charge is shown on the Renewal Certificate. Our limit for each coverage shall not be more than the amount stated for such coverage on the Renewal Certificate, subject to all the terms, conditions, forms, and endorsements attached to the policy or to the Renewal Certificate.

Important Notice

In compliance with the requirements of the Fair Credit Reporting Act (Public Law 91-08), we advise that as part of our routine procedure in reviewing applications for insurance or renewals of insurance policies, this insurance company may procure an investigative consumer report including information as to the consumer's character, general reputation, personal characteristics or mode of living, if such insurance is for an individual and is primarily for personal, family or household purposes. Such information will be obtained through personal interviewing neighbors, friends, or others with whom the consumer is acquainted.

Upon written request to this insurance company, made within a reasonable period of time after receipt of this notice, this company will provide in writing a complete and accurate disclosure of the nature and scope of the investigation requested, if one was requested, or advise that none was requested.



UTICA FIRST INSURANCE COMPANY
CONSTITUTED IN OHIO AS
UTICA FIRST INSURANCE COMPANY (MUTUAL)

Home Office: 5981 Airport Rd, Oriskany, NY 13424
Mailing Address: PO Box 851, Utica, NY 13503-0851
Phone: 800-456-4556

COMMERCIAL UMBRELLA/EXCESS LIABILITY DECLARATIONS

Policy Number: ULC4865409950

Transaction Type:
Billing Type:

New Business
Direct Bill

ing Address:

STONEPATH HOLDINGS

4118 Station
Hhyhy, Jeb Dzirz 52449

CEDARLINE HOLDINGS
PO Box 405
Hancock, New York 13783

Policy Period: 12:01 A.M. Standard Time at Location of Designated Premises.

From 04/16/2026 to 04/16/2027

IN RETURN FOR PAYMENT OF THE REQUIRED PREMIUM, AND SUBJECT TO ALL THE TERMS OF THIS POLICY, WE WILL PROVIDE THE INSURANCE AS DESCRIBED IN THIS POLICY

POLICY LIMIT: \$2,000,000

PREMIUM: \$1,000

A handwritten signature in black ink, appearing to read 'L. J. ...', positioned above the countersignature line.

Our Authorized Representative
Countersignature Date 04/24/2026



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Home Office: 5981 Airport Rd, Oriskany, NY 13424
Mailing Address: PO Box 851, Utica, NY 13503-0851
Phone: 800-456-4556

Policy Number: ULC4865409950
Policy Period: 04/16/2

Form of Business: Business

Type of Policy: Excess

<u>LIMITS OF INSURANCE:</u>	<u>LIMIT OF INSURANCE</u>
Each Occurrence Limit:	\$2,000,000
Personal and Advertising Injury Limit:	\$2,000,000
Products-Completed Operations Aggregate Limit:	\$2,000,000
General Aggregate Limit:	\$2,000,000

SCHEDULE OF UNDERLYING INSURANCE

General Liability

Company:		nce Company
Policy Number:	ART3610299383	
Policy Period:		6/2027
Each Occurrence Limit:	\$1,000,000	
General Aggregate Limit:	\$2,000,000	
Products-Completed Operations Aggregate Limit:	\$2,000,000	
Personal/Advertising Injury Limit:	\$1,000,000	

Umbrella coverage for Workers Compensation and Employers Liability is not applicable in situations where an employee is subject to the New York Workers Compensation Law.



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Policy Number: ULC4865409950
Policy Period: 04/16/2

These declarations together with the Common Policy Conditions, Coverage Part Declarations, Conditions, Forms and Endorsements, if any, issued to form a part thereof, completes the above numbered policy.

FORMS INVENTORY

POLICY FORMS

U 101	08 98	Unimpaired Aggregate
DNUM253	11 25	Disclosure Notice: Exclusion -- Non-Owned Auto Liability Coverage Hired Auto Liability Coverage
UM 0272	04	Exclusion - Real and Personal Property Care, Custody, and Control Coverages E and U
26 JJ 2975	04 00	Exclusion - Non-owned Auto Liability Coverage
UM 0200	04 00	Commercial Umbrella/Excess Liability Coverage
U69	08 98	Personal Injury Liability Following Form Endorsement
UFR 1	07 11	Roofing Operation Specific Exclusion Endorsement
ULCDNY	10 24	New York Commercial Umbrella/Excess Liability Declaration
U28	01	Exclusion - Contractors Endorsement Coverage U
51 WX 7144	01 15	Certified Terrorism Loss
UM 0673	03 10	Amendatory Endorsement New York
XSP 1	01 09	Commercial Spray Painting Exclusion
XCNTR	2.0	Exclusion of Injury to Employees, Contractors and Employees of Contractors
UM 0810	01 10	Exclusion - Communicable Disease
UM 0319	10	Asbestos Exclusion
63 ZP 6736	02 08	Telephone Consumer Protection Act of 1991, Can-Spam Act of 2003, and Other Information Distribution Violations Exclusion
UM 0316	11	Silica Exclusion
33 LX 4274	04 00	Punitive Damages Exclusion
UM 0282	04	Exclusion - Cross Liability
49 TA 0628	04 00	Exclusion - Employee Benefits Liability
UM 0277	04	Exclusion - Employment Related Practices Liability
46 BT 8080	04 00	Directors and Officers Liability Exclusion
UM 0273	04	Known Injury or Damage Amendments
41 KT 4199	04 00	Exclusion - Contractual Liability
UM 0206	01	Exclusion - War and Military Action
43 RH 5088	04 02	Exclusion - Exterior Insulation and Finish Systems
UM 0203	04 02	Exclusion - Damage to Work Performed by You or on Your Behalf

CERTIFIED TERRORISM LOSS

1. The following definitions are added:
 - a. "Certified act of terrorism" means an act that is certified by the Secretary of the Treasury, in consultation with the Secretary of Homeland Security, and the Attorney General of the United States:
 - 1) to be an act of terrorism;
 - 2) to be a violent act or an act that is dangerous to human life, property, or infrastructure;
 - 3) to have resulted in damage:
 - a) within the United States; or
 - b) to an air carrier (as defined in section 40102 of title 49, United States Code); to a United States flag vessel (or a vessel based principally in the United States, on which United States income tax is paid and whose insurance coverage is subject to regulation in the United States), regardless of where the loss occurs; or at the premises of any United States mission;
 - 4) to have been committed by an individual or individuals, as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion; and
 - 5) to have resulted in insured losses in excess of five million dollars in the aggregate, attributable to all types of insurance subject to the Terrorism Risk Insurance Act, as amended.
 - b. "Certified terrorism loss" means loss that results from a "certified act of terrorism".
2. The following provision is added:

If the Secretary of the Treasury determines that the aggregate amount of "certified terrorism loss" has exceeded one hundred billion dollars in a calendar year (January 1 through December 31), and "we" have met "our" insurer deductible under the Terrorism Risk Insurance Act, as amended, "we" will not pay for any portion of "certified terrorism loss" that exceeds one hundred billion dollars. If the "certified terrorism loss" exceeds one hundred billion dollars in a calendar year (January 1 through December 31), losses up to one hundred billion dollars are subject to pro rata allocation in accordance with procedures established by the Secretary of the Treasury under the Terrorism Risk Insurance Act, as amended.

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UTICA FIRST INSURANCE COMPANY

P.O. Box 507

, Utica, NY 13503-0851 Tel. 315-736-8211 Fax: 315-768-4408

IMPORTANT NOTICE

EXCLUSION -- NON-OWNED AUTO LIABILITY COVERAGE HIRED AUTO LIABILITY COVERAGE

A recent internal audit found that form UM 0253, EXCLUSION -- NON-OWNED AUTO LIABILITY COVERAGE HIRED AUTO LIABILITY COVERAGE E was inadvertently omitted from your current policy packet. This oversight has been corrected, and the form is included with this renewal.

As a reminder, your policy excludes coverage for bodily injury or property damage arising out of the use of non-owned auto in the insured's business by any person other than the insured or arising out of the maintenance or use of a hired auto by the insured or his employees in the course of the insured's business

This summary is not a replacement for the terms of the policy of insurance, shall not have the effect of altering the coverage afforded by the policy, and shall not confer new or additional rights beyond those expressly provided for in the policy. This information is only provided as guidance to the policyholder in understanding the terms of the policy of insurance. You should consult your policy, agent, and insurer if you have questions about your particular coverage.

DNUM253 11 25

EXCLUSION – CONTRACTORS ENDORSEMENT COVERAGE U

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE U

CONTRACTOR'S ENDORSEMENT EXCLUSION

The following exclusions are added under Coverage U:

It is agreed that this policy does not apply:

1. To any liability for "property damage" to property leased or rented to, used by, or in the care, custody or control of the Insured or as to which the Insured is for any purpose exercising physical control;
2. To any liability for "property damage" arising out of (a) blasting or explosion other than the explosion of air or steam vessels, piping under pressure, prime movers, machinery or power transmitting equipment; or (b) the collapse of or structural injury to any building or structure due to (i) grading of and excavation, burrowing, filling or backfilling, tunneling, pile driving, coffer-dam work or caisson work, or (ii) moving, shoring, underpinning, raising or demolition of any building or structure, or removal or rebuilding of any structural support thereof; or (c) injury to or destruction of wires, conduits, pipes, mains, sewers, tanks, tunnels, any similar property and any apparatus in connection therewith, beneath the surface of the ground or water, caused by and occurring during the use of mechanical equipment for the purpose of grading land, paving, excavating, drilling, burrowing, filling, back-filling or pile driving.
3. CLEARWATER AUTOMOTIVE SERVICES

collectible underlying insurance at the full limits of liability as described in the schedule of underlying insurance, and then only for such hazards for which coverage is afforded under said underlying insurance.

It is further agreed that this policy does not apply to any liability for "bodily injury", "personal injury" or "property damage" arising out of:

1. any project insured under a "wrap-up" (wrap-up refers to a policy, or series of policies, written to cover a specific project that insures all of the persons and entities working on such project) or any similar rating plan;
2. any professional services performed by or on behalf of the Insured, including the preparation or approval of maps, plans, opinions, reports, surveys, designs or specifications, and any supervisory, inspection or engineering services;
3. operations performed by or on behalf of any joint venture of which the Insured is a member.

UTICA FIRST INSURANCE COMPANY

PERSONAL INJURY LIABILITY FOLLOWING FORM
ENDORSEMENT

It is agreed that this policy shall not apply to any liability for personal injury arising out of:

(1) false arrest, false imprisonment, wrongful eviction, wrongful entry, wrongful detention or malicious prosecution; or

(2) libel, slander, defamation of character, humiliation, or invasion of the rights of privacy, unless arising out of advertising activities;

Unless such liability is covered by valid and collectible underlying insurance as described in the schedule of underlying insurance, and then only for such hazards for which coverage is afforded under said underlying insurance.

UTICA FIRST INSURANCE COMPANY

UNIMPAIRED AGGREGATE

In consideration of the premium charged it is understood and agreed that the underlying aggregate limits, where applicable, shall be unimpaired at the attachment date of this policy and for the purpose of this insurance, only occurrences taking place during the term of this policy shall be considered in determining the extent of any exhaustion of the underlying aggregate limits.



ROOFING OPERATION SPECIFIC EXCLUSION ENDORSEMENT

It is hereby understood and agreed that such insurance as is afforded by Coverage L – Bodily Injury Liability and Property Damage Liability and Coverage N – Products/Completed Work does not apply to Bodily Injury, Property Damage, Products or Completed Work arising out of any **Roofing Operations**.

Roofing Operations is defined herein as any work involving, in whole or in part, the repair, removal, replacement and/or recovering of an existing roof, or any part or section thereof.

COMMERCIAL UMBRELLA/EXCESS LIABILITY COVERAGE (THIS POLICY MAY INCLUDE CLAIMS-MADE COVERAGES)

The following Table of Contents shows how this policy is organized. It will help "you" locate particular sections of this form.

TABLE OF CONTENTS

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Endorsements and schedules may also apply. They are identified on the "declarations".

Refer to the Definitions for words and phrases that have special meaning. These words and phrases are shown in quotation marks.

AGREEMENT

In return for "your" payment of the required premium, "we" provide the coverages described herein subject to all the "terms".

DEFINITIONS

1. The words "you" and "your" mean the person, persons ed as the
insured CEDARLINE LOGISTICS
2. The words "we", "us", and "our" mean the company providing this coverage.
3. "Advertising injury" means injury, other than "bodily injury", "personal injury", or "property damage", arising out of one or more of the following offenses:
 - a. oral or written publication of material:
 - 1) that slanders or libels a person or organization;
 - 2) that disparages a person's or organization's goods, products, or services; or
 - 3) that violates a person's right of privacy;
 - b. misappropriation of advertising ideas or style of doing business; or
 - c. infringement of copyright, title, slogan, trademark, or trade name.
4. "Auto" means a land motor vehicle, a trailer, or a semi-trailer which is designed for use on public roads.

"Auto" includes attached machinery and equipment. "Auto" does not include "mobile equipment".
5. "Basic territory" means the United States of America, its territories and possessions, Canada, and Puerto Rico.
6. "Bodily injury" means bodily harm, sickness, or disease sustained by a person and includes required care and loss of services. "Bodily injury" includes death that results from bodily harm, sickness, or disease. "Bodily injury" does not include mental or emotional injury, suffering, or distress that does not result from physical injury.
7. "Coverage territory" means the world, provided that the "insured's" liability to pay "damages" has been determined in a "suit" on the merits in the "basic territory", or in a settlement that "we" have agreed to.
8. "Claim" means a demand for money or services, including the bringing of "suit" or the initiation of alternative dispute resolution proceedings against an "insured".
9. "Claims-made" means liability insurance coverage provisions that apply to a "claim" for injury or damage if:
 - a. the "claim" is first made against an "insured" during the policy period or an extended reporting period; and
 - b. the injury or damage occurs on or after the retroactive date shown on the declarations of the "claims-made" policy and prior to the termination of the policy period of that insurance.
10. "Damages" means compensation in the form of money for a person who claims to have suffered an injury.
11. "Declarations" are all pages labeled Declarations, Supplemental Declarations, or Schedules, which pertain to this policy.
12. "Designated insured" means:
 - a. "you" and "your" spouse, but only with respect to the conduct of a business of which "you" are the sole owner, if "you" are shown on the "declarations" as an individual;
 - b. "you" and all "your" partners or members and their spouses, but only with respect to the conduct of "your" business, if "you" are shown on the "declarations" as a partnership or a joint venture;
 - c. "you" and all "your" members and managers, but only while acting within the scope of their duties, if "you" are shown on the "declarations" as a limited liability company;

- d. "you" and all "your" executive officers and directors, but only while acting within the scope of their duties, if "you" are shown on the "declarations" as an organization (other than a partnership, joint venture, or limited liability company). It also includes "your" stockholders, but only for their liability as such; and
 - e. any "employee" who is authorized to give or receive notice of an "occurrence" or a "claim".
13. "Employee" includes a "leased worker". "Employee" does not include a "temporary worker".
14. "Impaired property" means tangible property (other than "products" or "your work"):
- a. whose value has been decreased:
 - 1) because it includes "products" or "your work" that is, or is believed to be, deficient or dangerous; or
 - 2) because "you" failed to carry out the terms of a contract; and
 - b. whose value can be restored:
 - 1) by the repair, replacement, adjustment, or removal of "products" or "your work"; or
 - 2) by "your" fulfilling the terms of the contract.
15. "Insured" --
- a. Under Coverage E, "insured" means:
 - 1) "you"; and
 - 2) persons or organizations included as insureds or additional insureds in "underlying insurance". However, this coverage applies only to the extent such persons or organizations are covered by "underlying insurance".
 - b. Under Coverage U, "insured" means:
 - 1) "you" and "your" spouse, but only with respect to the conduct of a business of which "you" are the sole owner, if shown on the "declarations" as an individual;
 - 2) "you" and all "your" partners or members and their spouses, but only with respect to the conduct of "your" business, if shown on the "declarations" as a partnership or joint venture;
 - 3) "you" and all "your" members and managers, but only while acting within the scope of their duties, if shown on the "declarations" as a limited liability company; or
 - 4) "you" and all "your" executive officers and directors, but only while acting within the scope of their duties, if shown on the "declarations" as an organization (other than a partnership, joint venture, or limited liability company). It also includes "your" stockholders, but only for their liability as such.
 - c. Under Coverage U, "insured" also includes:
 - 1) any person or organization, except "your" "employees", while acting as "your" real estate manager;
 - 2) if "you" die during the policy period, "your" legal representative while acting within the scope of those duties as such, or a person who has custody of "your" property with respect to liability arising out of the maintenance or use of that property until "your" legal representative is appointed. "Your" legal representative has all "your" rights and duties under this coverage;
 - 3) with respect to the operation, with "your" permission, of "mobile equipment":

- a) "your" "employee" in the course of employment. This does not apply to a fellow "employee" injured in the course of employment;
 - b) any other person, including another person or organization legally liable for the conduct of such person, but only:
 - (1) for liability arising out of the operation of the equipment; and
 - (2) if there is no other insurance covering the liability available to them;
 - c) no person or organization is an "insured" for "property damage" to property owned by, rented to, in the charge of, or occupied by "you" or an employer of any person who is an "insured" under paragraph c.3).
- 4) "your" "employees" for acts within the scope of their employment by "you" (this does not include "your" managers if "you" are a limited liability company or "your" executive officers if "you" are an organization other than a limited liability company). None of these "employees" are "insureds" for:
- a) "bodily injury", "personal injury", or "advertising injury" to "you" or to a fellow "employee"; or
 - b) "property damage" to property owned by, rented to, or loaned to "employees" or any of "your" partners or members and their spouses (if "you" are a partnership or joint venture), or any of "your" members (if "you" are a limited liability company); and

- 5) any organization (other than a joint venture, partnership, or limited liability company) newly acquired or formed by "you", and in which "you" have a majority interest.

Such an organization is not an "insured":

- a) if there is other similar insurance available to it;
- b) after 90 days immediately following that acquisition or formation or the end of the policy period, whichever is earlier;
- c) for "bodily injury" or "property damage" that occurred prior to the acquisition or formation; or
- d) for "personal injury" or "advertising injury" arising out of an offense committed prior to the acquisition or formation.

No person or organization is an "insured" with respect to the conduct of a current or past partnership, joint venture, or limited liability company that is not named on the "declarations" as an "insured".

16. "Insured contract" --

- a. "Insured contract" means:

- 1) a lease of premises;
- 2) an easement or license agreement (this does not include an agreement in connection with any construction or demolition operation within 50 feet of a railroad);
- 3) a promise to indemnify a municipality if required by an ordinance (this does not apply in connection with work done for the municipality);
- 4) a sidetrack agreement;
- 5) an elevator maintenance agreement; or

- 6) any part of any other contract or agreement relating to the conduct of "your" business (including an indemnification of a municipality in connection with work performed for a municipality) under which "you" assume tort liability of another party to pay "damages" because of "bodily injury" or "property damage" to a third party or organization. Tort liability means a liability that would be imposed by law in the absence of any contract or agreement.
- b. However, "insured contract" does not include that part of any contract or agreement:
 - 1) that indemnifies any person or organization for "bodily injury" or "property damage" arising out of operations within 50 feet of railroad property and affecting any railroad bridge or trestle, tracks, road-beds, tunnel, underpass, or crossing;
 - 2) that indemnifies an architect, engineer, or surveyor for injury or damage arising out of:
 - a) preparing, approving, or failing to prepare or approve maps, drawings, opinions, reports, surveys, change orders, designs, or specifications; or
 - b) giving directions or instructions, or failing to give them, if that is the primary cause of the injury or damage;
 - 3) under which the "insured", if an architect, engineer, or surveyor, assumes liability for injury or damage arising out of the "insured's" rendering or failing to render professional services including those listed in b.2)a) above, and supervisory, inspection, or engineering services; or
 - 4) that indemnifies any person or organization for damage by fire to premises rented or loaned to "you".
17. "Leased worker" means a person whom "you" lease from a labor leasing firm under a contract or agreement to perform duties related to the conduct of "your" business. "Leased worker" does not include a "temporary worker".
18. "Limit" means the amount of coverage that applies.
19. "Loading or unloading" means the movement of property:
 - a. starting with after it is removed from the point where it has been accepted for transit by "auto", aircraft, or watercraft;
 - b. continuing while it is on such vehicle; and
 - c. ending when it has been removed from the vehicle at its point of destination."Loading or unloading" includes movement by:
 - a. a hand truck; or
 - b. any mechanical device when attached to the vehicle.
20. "Mobile equipment" means a land motor vehicle, including attached machinery or equipment, that meets one or more of the following criteria:
 - a. those which are used only on premises owned by or rented to "you" (premises includes adjoining ways);
 - b. those which are designed primarily for use off public roads;
 - c. those which travel on crawler treads;
 - d. those which are self-propelled and designed or used only to afford mobility to the following types of equipment which must be a part of or be permanently attached to such vehicle:
 - 1) power cranes, shovels, loaders, diggers, or drills;

- 2) concrete mixers (this does not include the mix-in-transit type); and
 - 3) graders, scrapers, rollers, and other road construction or repair equipment; and
- e. those which are not self-propelled, but are used primarily to afford mobility to the following types of equipment permanently attached thereto:
- 1) air compressors, pumps, and generators (this includes spraying, welding, and building cleaning equipment);
 - 2) geophysical exploration, lighting, and well servicing equipment; and
 - 3) cherry pickers and similar devices used to raise and lower workers.

However, "mobile equipment" does not include self-propelled vehicles with the following types of permanently attached equipment:

- a. equipment designed primarily for snow removal, street cleaning, road maintenance other than road construction, or resurfacing;
- b. cherry pickers and similar devices used to raise and lower workers;
- c. air compressors, pumps, and generators (this includes spraying, welding, and building cleaning equipment); or
- d. geophysical exploration, lighting, and well servicing equipment.

Such self-propelled vehicles with attached equipment will be considered "autos".

21. "Occurrence" means an accident, including repeated exposures to similar conditions.
22. "Other insurance" means insurance other than:
- a. "underlying insurance"; or

- b. insurance which is specifically purchased by the "insured" to apply in excess of the insurance afforded by this policy;

which is available to the "insured" and provides coverage with respect to injury or damage to which this policy applies.

23. "Personal injury" means injury, other than "advertising injury", "bodily injury", or "property damage", arising out of one or more of the following offenses:

- a. oral or written publication of material:
 - 1) that slanders or libels a person or organization;
 - 2) that disparages a person's or an organization's goods, products, or services; or
 - 3) that violates a person's right of privacy;
- b. false arrest, detention, or imprisonment;
- c. malicious prosecution; or
- d. wrongful entry into, wrongful eviction from, or invasion of the right of private occupancy of a room, dwelling, or premises that a person occupies. This offense must be committed by or on behalf of the owner, landlord, or lessor of the room, dwelling, or premises.

24. "Pollutant" means:

- a. any solid, liquid, gaseous, thermal, or radioactive irritant or contaminant, including acids, alkalis, chemicals, fumes, smoke, soot, vapor, and waste. Waste includes materials to be recycled, reclaimed, or reconditioned, as well as disposed of; and
- b. electrical or magnetic emissions, whether visible or invisible, and sound emissions.

25. "Products/completed work hazard" --

- a. "Products hazard" means "bodily injury" or "property damage" occurring away from premises "you" own or rent and arising out of "products" after physical possession of the "products" has been relinquished to others.
- b. "Completed work hazard" means "bodily injury" or "property damage" occurring away from premises "you" own or rent and arising out of "your work". It does not include work that has not been completed or that has not been abandoned.

"Your work" is deemed completed at the earliest of the following times:

- 1) when all work specified in "your" contract has been done.
- 2) when all "your work" to be done at a job site has been completed if "your" contract includes work at more than one site; or
- 3) when "your work" at a job site has been put to its intended use by any person or organization other than another contractor or subcontractor working on the same job site.

Work which requires further service, maintenance, correction, repair, or replacement because of a defect or deficiency, but which is otherwise complete, shall be deemed completed.

- c. Neither of these hazards include "bodily injury" or "property damage" arising out of:
 - 1) the transportation of property, unless the injury or damage arises out of a condition in or on a vehicle, created by "loading or unloading";

- 2) the presence of tools, uninstalled equipment, or abandoned or unused materials; or
- 3) products or work for which the classification on the declarations of a policy of "underlying insurance" specifies "including Products/Completed Work".

26. "Products" means goods or products manufactured, sold, handled, distributed, or disposed of by "you", others trading under "your" name, or a person or organization whose business assets "you" have acquired.

"Products" includes:

- a. warranties or representations made at any time with respect to the fitness, quality, durability, or performance of "products";
- b. containers (other than vehicles), materials, parts, or equipment furnished in connection with "products"; and
- c. providing or failing to provide warnings or instructions.

"Products" does not include vending machines or other property that is rented to or placed for the use of others, but not sold; or real property.

27. "Property damage" means:

- a. physical injury or destruction of tangible property; or
- b. the loss of use of tangible property whether or not it is physically damaged. Loss of use is deemed to occur at the time of the "occurrence" that caused it.

28. "Recreational vehicle" means a golf cart, snowmobile, or any other land motor vehicle designed for off-road recreational use.

29. "Suit" means any civil proceeding in a court of law in which "damages" to which this insurance applies are sought.

"Suit" includes arbitration proceedings in which "damages" are claimed and to which the "insured" must submit or does submit with "our" consent or any other alternative dispute resolution proceeding in which such "damages" are claimed and to which the "insured" does submit with "our" consent.

30. "Temporary worker" means a person who is furnished to "you" as a temporary substitute for an "employee".

31. "Terms" means all provisions, limitations, exclusions, conditions, and definitions that apply to this Commercial Umbrella/Excess Liability Coverage.

32. "Underlying insurance" means the liability insurance coverage provided under policies shown in the Schedule of Underlying Insurance on the "declarations" for the "limits" and policy periods indicated. This includes any policies issued to replace those policies during the term of this insurance that provide:

- a. at least the same "limits"; and
- b. the same hazards insured against, except as modified by general program revisions or as agreed to by "us" in writing.

33. "Underlying insurer" means any insurer who issues a policy of "underlying insurance".

34. "Your work" means:

- a. work or operations performed by "you" or on "your" behalf;
- b. materials, parts, and equipment supplied for such work or operations;
- c. written warranties or representations made at any time regarding quality, fitness, durability, or performance of any of the foregoing; and

- d. providing or failing to provide warnings or instructions.

PRINCIPAL COVERAGES

Coverage E -- Excess Liability

1. "We" pay, up to "our" "limit", all sums in excess of "underlying insurance" for which an "insured" becomes legally obligated to pay as "damages" to which this insurance applies.

This insurance applies only to:

- a. "bodily injury" or "property damage":
 - 1) that is caused by an "occurrence" which takes place in the "coverage territory";
 - 2) that occurs during the policy period of this policy; and
 - 3) that is covered by "underlying insurance";
- b. "personal injury" arising out of an offense committed in the course of "your" business, excluding advertising, publishing, broadcasting, or telecasting done by "you" or on "your" behalf. The offense must be:
 - 1) committed within the "coverage territory";
 - 2) committed during the policy period of this policy; and
 - 3) covered by "underlying insurance";
- c. "advertising injury" arising out of an offense committed in the course of advertising "your" goods, products, or services. The offense must be:
 - 1) committed within the "coverage territory";
 - 2) committed during the policy period of this policy; and
 - 3) covered by "underlying insurance"; and

- d. any other negligent act, error, omission, injury, event, incident, or offense that is covered by "underlying insurance" on a "claims-made" basis. The negligent act, error, omission, injury, event, incident, or offense must take place:

- 1) within the "coverage territory"; and
- 2) on or after the Retroactive Date shown on the "declarations" of this policy and prior to the end of the policy period of this policy.

This applies only if a "claim" is first made against an "insured" within this policy period or an Extended Reporting Period provided by this policy.

A "claim" will be deemed to have been made when notice of such "claim" is received in writing by the "insured" or by "us", whichever is received first.

2. If "underlying insurance" provides an extended reporting period, then Coverage E - Excess Liability will also provide an Extended Reporting Period that is subject to the same terms of the extended reporting period that is provided by "underlying insurance".

The following conditions apply to the Extended Reporting Period provided by this policy:

- a. The coverage provided by the Extended Reporting Period of Coverage E -- Excess Liability will be excess over the extended reporting period of the "underlying insurance".
- b. The Extended Reporting Period applies to claims for injury that take place on or after the Retroactive Date shown on the "declarations" of this policy and before the end of this policy period.
- c. The Extended Reporting Period of this policy will not reinstate or increase the "limits" of this coverage or lengthen the term of this policy.

- d. If "underlying insurance" requires a written request from "you" for an extended reporting period to apply to a "claim", then for an Extended Reporting Period to apply under this policy:

- 1) "we" must also receive a written request within 60 days of the end of the policy period; and
- 2) "you" must pay an additional premium to "us" when due.

3. The terms, definitions, conditions, and exclusions of the policies of "underlying insurance" govern the coverage provided under Coverage E of this Commercial Umbrella/Excess Liability Coverage, except for provisions pertaining to premium, right of recovery, cancellation, insurance under more than one policy, defense, "limits", any agreement to renew, and the "terms" of this coverage.

Coverage U -- Umbrella Liability

1. "We" pay, up to "our" "limit", all sums in excess of either the Retained Limit shown on the "declarations" or the amount payable under "other insurance", whichever is greater, for which an "insured" becomes legally obligated to pay as "damages" because of "bodily injury", "property damage", "personal injury", or "advertising injury" to which this insurance applies.

- a. This insurance applies to "bodily injury" or "property damage":
 - 1) caused by an "occurrence" which takes place in the "coverage territory"; and
 - 2) that occurs during the policy period of this policy;

This insurance does not apply to "bodily injury" or "property damage" which is a continuation of, resumption of, or change in "bodily injury" or "property damage" that was known by a "designated insured" prior to the inception date of this policy period.

If a "designated insured" knew, as stated under the Knowledge of Bodily Injury or Property Damage condition, prior to the inception date of this policy period, that "bodily injury" or "property damage" had occurred, any continuation of, resumption of, or change in such "bodily injury" or "property damage" will be deemed to have b
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policy

"Bodily injury" or "property damage" that occurs during this policy period and which is not a continuation of, resumption of, or change in "bodily injury" or "property damage" which was known by a "designated insured", as stated under the Knowledge of Bodily Injury or Property Damage condition to have occurred prior to the inception date of this policy period, will include any continuation of, resumption of, or change in such "bodily injury" or "property damage" after the end of this policy period.

b. This insurance also applies to:

- 1) "personal injury" arising out of an offense committed in the course of "your" business, excluding advertising, publishing, broadcasting, or telecasting done by "you" or on "your" behalf. The offense must be committed:
 - a) within the "coverage territory"; and
 - b) during the policy period of this policy; and
- 2) "advertising injury" arising out of an offense committed in the course of advertising "your" goods, products or services. The offense must be committed:
 - a) within the "coverage territory"; and
 - b) during the policy period of this policy.

2. Coverage U does not apply to "claims" which are covered under Coverage E or would have been covered except for exhaustion of the "limit" of an "underlying insurance" policy.
3. No other obligation or liability to pay sums or perform acts or services is covered unless explicitly provided for under Defense Coverage.

DEFENSE COVERAGE

Payments under this coverage are in addition to the "limits" for the Commercial Umbrella/Excess Liability Coverage.

1. Under Coverage E, "we" have the right and duty to defend a "claim" or "suit" seeking "damages" which may be covered under Coverage E -- Excess Liability, when the "limits" of "underlying insurance" are exhausted. "We" may make investigations and settle "claims" or "suits" "we" decide are appropriate.

At "our" option, "we" have the right to participate with the "insured" or any "underlying insurer" in the defense, investigation, and settlement of "claims" or "suits" covered under Coverage E, if "we" think the "limits" of "underlying insurance" might become exhausted.

2. Under Coverage U, "we" have the right and duty to defend a "claim" or "suit" seeking "damages" for "bodily injury", "property damage", "personal injury", or "advertising injury" which may be covered. "We" may make investigations and settle "claims" or "suits" "we" decide are appropriate.
3. Under Coverages U, "we" have no duty to defend a "suit" or "claim" seeking "damages" because of "bodily injury" or "property damage" d
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prior to the inception date of this policy period.

4. "We" do not have to provide a defense after "we" have paid an amount equal to the "limit" as a result of:
 - a. a judgment; or
 - b. a written settlement agreed to by "us".
5. If "we" are prevented by law or otherwise prevented from carrying out this agreement, "we" will pay the "insured" for any expense incurred with "our" written consent.
6. If "we" defend a "suit", "we" pay:
 - a. the costs taxed to an "insured";
 - b. the expenses incurred by "us";
 - c. the actual loss of earnings by an "insured" for time spent away from work at "our" request. "We" pay up to \$100 per day;
 - d. the necessary expenses incurred by "you" at "our" request;
 - e. pre-judgment interest awarded against any "insured" on that part of the judgment "we" pay. If "we" offer to pay the "limit", "we" will not pay any pre-judgment interest based on that period of time after the offer;
 - f. the interest which accrues after the entry of a judgment, but ending when "we" tender, deposit in court, or pay up to "our" "limit";
 - g. the cost of appeal bonds or bonds for the release of attachments up to "our" "limit". "We" are not required to apply for or furnish bonds; and
 - h. the cost, up to \$500, for bail bonds required of an "insured" because of an accident or traffic law violation arising out of the use of a vehicle to which this policy applies. "We" are not required to apply for or furnish bonds.

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

1. "We" do not pay for injury or damage that is not covered by "underlying insurance" for any reason other than exhaustion of its "limit".
2. "We" do not pay for a "claim" based on violation of the responsibilities, obligations, or duties imposed on fiduciaries by the Employee Retirement Income Security Act of 1974 as amended and any regulations pertaining thereto.
3. "We" do not pay for "bodily injury" if benefits are provided or are required to be provided by the "insured" under a workers compensation, disability benefits, occupational disease, unemployment compensation, or similar law.
4. "We" do not pay for liability for "bodily injury" sustained by an "employee" of the "insured" arising out of and in the course of employment as a master or member of the crew of any vessel.
5. Regardless of the terms of the "underlying insurance", Coverage E -- Excess Liability does not provide:
 - a. benefits specified by automobile no-fault laws or any similar laws; or
 - b. liability imposed by uninsured motorists, underinsured motorist, or first party "bodily injury" or "property damage" laws.
6. "We" do not pay for "bodily injury" or "property damage" arising out of the actual, alleged, or threatened discharge, dispersal, seepage, migration, release, or escape of "pollutants":

- a. at or from any premises, site, or location which is or was at any time owned by, occupied by, rented to, or loaned to any "insured", unless the "bodily injury" or "property damage" arises from the heat, smoke, or fumes of a fire which becomes uncontrollable or breaks out from where it was intended to be located.
 - b. at or from any premises, site, or location which is or was at any time used by or for any "insured" or others for the handling, storage, disposal, processing, or treatment of waste;
 - c. which are or were at any time transported, handled, stored, treated, disposed of, or processed as waste by or for any "insured" or any person or organization for whom any "insured" may be legally responsible; or
 - d. at or from any premises, site, or location where any "insured" or any contractor or subcontractor, directly or indirectly under "your" control, is working:
 - 1) if the "pollutants" are brought on or to the premises, site, or location in connection with such work by such "insured", unless the "bodily injury" or "property damage" arises from the heat, smoke, or fumes of a fire which becomes uncontrollable or breaks out from where it was intended to be located; or
 - 2) if the work is to test for, monitor, clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effect of "pollutants".
- 7. "We" do not pay for "personal injury" or "advertising injury" arising out of the actual, alleged, or threatened discharge, dispersal, seepage, migration, release, or escape of "pollutants" at any time.
 - 8. "We" do not pay for any loss, cost, or expense arising out of any:
 - a. request, demand, or order that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effects of "pollutants"; or
 - b. "claim" or "suit" by or on behalf of any governmental authority relating to testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of "pollutants".
 - 9. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" arising out of lead in any form.
 - 10. "We" do not pay for any loss, cost, or expense arising out of any:
 - a. request, demand, or order that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effects of lead; or
 - b. "claim" or "suit" by or on behalf of any governmental authority relating to testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of lead.

However, this exclusion does not apply to "bodily injury" or "property damage" that arises out of the ownership, operation, maintenance, use, occupancy, renting, loaning, entrusting, supervision, or "loading or unloading" of an "auto" or "mobile equipment" but only to the extent that such "bodily injury" or "property damage" is covered by "underlying insurance" at the time of the "occurrence".

- 11. "We" do not pay for "bodily injury" or "property damage" which results from the use of "autos", "mobile equipment", watercraft, or "recreational vehicles" in or in the practice for or the preparation for racing, speed, pulling or pushing, demolition, or stunt activities or contests.

12. "We" do not pay for medical payments or medical expenses for "bodily injury" covered by "underlying insurance".

EXCLUSIONS THAT APPLY ONLY TO COVERAGE U

1. "We" do not pay for "bodily injury" or "property damage":
- a. which is expected by, directed by, or intended by the "insured"; or
 - b. that is the result of intentional and malicious acts of the "insured".

This exclusion does not apply to "bodily injury" that arises out of the use of reasonable force to protect people or property.

2. "We" do not pay for a "claim" based on violation of the responsibilities, obligations, or duties imposed on fiduciaries by the Employee Retirement Income Security Act of 1974 as amended and any regulations pertaining thereto.
3. "We" do not pay for "bodily injury" or "personal injury" if benefits are provided or are required to be provided by the "insured" under a workers compensation, disability benefits, occupational disease, unemployment compensation, or like law.
4. "We" do not pay for liability for "bodily injury" sustained by an "employee" of the "insured" arising out of and in the course of employment as a master or member of the crew of any vessel.
5. "We" do not pay for:
- a. "bodily injury", "property damage", "personal injury", or "advertising injury" arising out of the ownership, maintenance, use, occupancy, renting, operation, loaning, entrusting, supervision, or "loading or unloading" of an "auto";
 - b. benefits specified by automobile no-fault laws or any similar laws; or

- c. liability imposed by uninsured motorists, underinsured motorists, or first party "bodily injury" or "property damage" laws.

6. "We" do not pay for:

- a. "bodily injury", "property damage", "personal injury", or "advertising injury" arising out of the actual, alleged, or threatened discharge, dispersal, seepage, migration, release, or escape of "pollutants" at any time; or
- b. any loss, cost, or expense arising out of any:
 - 1) request, demand, or order that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize or in any way respond to or assess the effects of "pollutants"; or
 - 2) "claim" or "suit" by or on behalf of any governmental authority relating to testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, or neutralizing or in any way responding to or assessing the effects of "pollutants".

7. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" arising out of lead in any form.

8. "We" do not pay for any loss, cost, or expense arising out of any:

- a. request, demand, or order that any "insured" or others test for, monitor, clean up, remove, contain, treat, detoxify, neutralize, or in any way respond to or assess the effects of lead; or
- b. "claim" or "suit" by or on behalf of any governmental authority for "damages" resulting from testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of lead.

9. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of war. War includes undeclared war, civil war, insurrection, rebellion, revolution, or an act or a condition of war.
10. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the ownership, maintenance, use, occupancy, renting, operation, loaning, entrusting, supervision, or "loading or unloading" of an aircraft.
11. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the ownership, maintenance, use, occupancy, renting, operation, loaning, entrusting, supervision, or "loading or unloading" of watercraft, "mobile equipment", or "recreational vehicles".
12. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" which results from the use of an "auto", "mobile equipment", watercraft, or "recreational vehicle" in or in the practice for or the preparation for racing, speed, pulling or pushing, demolition, or stunt activities or contests.
13. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" for which any "insured" may be held liable by reason of:
- a. causing or contributing to the intoxication of a person;
 - b. the furnishing of alcoholic beverages to a person under the influence of alcohol or under the legal drinking age; or
 - c. a law or regulation relating to the sale, gift, distribution, or use of alcoholic beverages.

This exclusion applies if "you" are in the business of manufacturing, distributing, selling, or serving alcoholic beverages.

14. "We" do not pay for:
- a. "bodily injury" or "personal injury" to an "employee" of the "insured" if it occurs in the course of employment by the "insured"; or
 - b. consequential injury to a spouse, child, parent, brother, or sister of such injured "employee".
- This exclusion applies where the "insured" is liable either as an employer or in any other capacity; or there is an obligation to fully or partially reimburse a third party for "damages" arising out of paragraph 14.a; or 14.b above.
- This exclusion does not apply to liability assumed by the "insured" under a contract.
15. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the rendering or failure to render a professional service.
16. "We" do not pay for "bodily injury" or "personal injury" that arises out of any:
- a. refusal to employ;
 - b. termination of employment;
 - c. coercion, demotion, evaluation, reassignment, discipline, defamation, harassment, humiliation, discrimination, sexual misconduct, or other employment related practices, policies, acts, or omissions; or
 - d. consequential "bodily injury" or "personal injury" as a result of a., b., or c. above.

This exclusion applies where the "insured" is liable either as an employer or in any other capacity; or there is an obligation to fully or partially reimburse a third party for "damages" arising out of a., b., c., or d. above.

17. "We" do not pay for "property damage" to:
- real property owned by, occupied by, or rented to "you"; or
 - personal property owned by "you".
18. "We" do not pay for liability which is assumed by the "insured" under a contract or agreement for "property damage" to personal property occupied by, rented to, used by, or in the care, custody, or control of the "insured". This exclusion does not apply to liability the "insured" would have had in the absence of the contract or agreement.
19. "We" do not pay for "property damage" to that specific part of real property on which work is being performed by:
- "you"; or
 - a contractor or subcontractor working directly or indirectly on "your" behalf;
- if the "property damage" arises out of such work. This exclusion does not apply with respect to liability assumed under a sidetrack agreement.
20. "We" do not pay for "property damage" to that specific part of any property that must be restored, repaired, or replaced because of faults in "your work". This exclusion does not apply to:
- "property damage" covered under the "products/completed work hazard"; or
 - liability assumed under a sidetrack agreement.
21. "We" do not pay for "property damage" to "products" if the damage arises out of the "products" or their parts.
22. "We" do not pay for "property damage" to "your work" if the "property damage" arises out of "your work" and is included in the "products/completed work hazard". This exclusion does not apply if damage to the work or the part of the work out of which the damage arises is performed by a subcontractor on "your" behalf.
23. "We" do not pay for "property damage" to property that has not been physically injured or destroyed, or to "impaired property", that arises out of:
- a delay or failure to perform a contract by "you" or one acting on "your" behalf; or
 - a defect, deficiency, inadequacy, or unsafe condition in "your work" or "products".
- This exclusion does not apply to the loss of use of other property resulting from sudden and accidental physical injury or destruction of "your work" or "products" after having been put to its intended use.
24. "We" do not pay for any loss or expense incurred by "you" or anyone else arising out of the loss of use, disposal, withdrawal, recall, inspection, repair, replacement, adjustment, or removal of (including any expenses involved in the withdrawal or recall) of "your work", "products", or "impaired property". This applies if "your work", "products", or "impaired property" is withdrawn or recalled from the market or from use because of a known or suspected defect, deficiency, or unsafe condition.
25. "We" do not pay for "personal injury" or "advertising injury" arising out of willful violation of an ordinance, statute, or regulation by an "insured" or with an "insured's" consent.

26. "We" do not pay for "personal injury" or "advertising injury" arising out of:
- oral or written publication of material done by or at the direction of an "insured" who knew it was false; or
 - oral or written publication of the same or similar material done by or on behalf of an "insured" that took place prior to the policy.
27. "We" do not pay for "advertising injury" arising out of breach of contract, other than misappropriation of advertising ideas under an implied contract.
28. "We" do not pay for "advertising injury" arising out of the failure of goods, products, or services to conform with advertised quality or performance.
29. "We" do not pay for "advertising injury" arising from an offense committed by an "insured" whose business is advertising, broadcasting, publishing, or telecasting.
30. "We" do not pay for "advertising injury" arising out of wrong descriptions of the price of an "insured's" goods, products, or services.
31. "We" do not pay for the tort liability of another which "you" assume under a contract or an agreement to pay "damages" because of "bodily injury", "property damage", "personal injury", or "advertising injury" to a third party or organization.

This exclusion does not apply to:

- liability that an "insured" would have had in the absence of the contract or agreement; or
- "bodily injury" or "property damage" liability assumed under an "insured contract", provided that the "bodily injury" or "property damage" occurs after the effective date of the contract or agreement.

IN CASE OF LOSS

- "You" must cooperate with the "underlying insurers" as required by the terms of their policies and comply with all terms and conditions of those policies.
- "You" must see to it that "we" receive notice as soon as practical of an "occurrence", offense, "claim", or "suit" to which this insurance may apply. To the extent possible, the notice to "us" should state:
 - the name of the "insured", the policy number, and the time, place, and details of the "occurrence" or offense; and
 - the names and addresses of all known potential claimants and witnesses.
- Cooperation** -- All "insureds" involved must cooperate with "us" in performing all acts required by this policy.
- Volunteer Payments** -- An "insured" must not make payments, pay or offer rewards, or assume obligations or other costs except at the "insured's" own cost.
- Other Duties** -- In case of an "occurrence" or offense which might result in a "claim", the "insured" must promptly give "us" copies of all legal papers, demands, and notices, that relate to the "occurrence", offense, or "claim".

At "our" request, the "insured" must help "us":

- to settle a "claim";
- to conduct "suits" (This includes being at trials and hearings);
- to enforce the right of recovery or indemnification against all parties who may be liable to an "insured" for the injury or damage;

WHAT MUST BE DONE

- d. in the securing of and giving of evidence;
and
- e. in obtaining the attendance of all
witnesses.

HOW MUCH WE PAY

COVERAGES E AND U -- EXCESS LIABILITY AND UMBRELLA LIABILITY

1. The most "we" pay regardless of the number of:
 - a. "insureds" under this policy;
 - b. persons or organizations who sustain
injury or damage;
 - c. "claims" made or "suits" brought;
 - d. vehicles or watercraft involved in an
accident; or
 - e. coverages provided under this policy;for all "damages" under Coverage E or
Coverage U for any one "occurrence" will not
exceed the "limit" shown in the "declarations"
as each "occurrence" to which this policy
applies.
2. The General Aggregate Limit is the most "we"
pay during a policy period for the sum of all
"damages", except for "damages":
 - a. included in the "products/completed work
hazard"; or
 - b. arising out of coverages included in
"underlying insurance" which are not
subject to an aggregate "limit".
3. The Products/Completed Work Hazard
Aggregate Limit is the most "we" pay during a
policy period for "damages" due to "bodily
injury" or "property damage" included in the
"products/completed work hazard".

4. The General Aggregate Limit and the
Products/Completed Work Hazard Aggregate
Limit apply separately to each consecutive 12
month period beginning with the inception
date shown on the "declarations" for this
Commercial Umbrella/Excess Liability
Coverage. They also apply separately to any
remaining policy period of less than 12
months, unless the Commercial
Umbrella/Excess Liability Coverage was
extended after it was written. In that case, the
additional period will be considered part of
the last preceding period for the purpose of
determining "limits".

COVERAGE E -- EXCESS LIABILITY

1. The Each Occurrence Limit, subject to the
General Aggregate Limit and the
Products/Completed Work Hazard Aggregate
Limit, is the most "we" will pay for the total of:
 - a. all "damages" arising out of a single
"occurrence"; and
 - b. all "personal injury" or "advertising injury"
sustained by one person or organization;covered by "underlying insurance".
2. If the "limit" of the "underlying insurance" is
exhausted by payment of "claims" or
"damages", this policy will continue to provide
coverage as "underlying insurance".
3. If the "limit" of the "underlying insurance" is
reduced by payment of "claims" or "damages"
this policy will apply excess of the reduced
"underlying insurance."

COVERAGE U -- UMBRELLA LIABILITY

The Each Occurrence Limit, subject to the
General Aggregate Limit and the
Products/Completed Work Hazard Aggregate
Limit, is the most "we" will pay in excess of the
Retained Limit shown on the "declarations" or
"other insurance", whichever is greater, for the
total of all "damages":

1. due to "bodily injury" or "property damage"
arising out of a single "occurrence"; or

2. due to "personal injury" or "advertising injury" sustained by one person or organization.
-

EXCESS INSURANCE

1. **Coverage E** -- The insurance provided by this coverage is excess over "underlying insurance", whether or not valid and collectible, available to the "insured", except insurance which is specifically purchased by the "insured" as excess insurance over the insurance provided by this policy.

Coverage U -- The insurance provided by this coverage will apply as excess over the Retained Limit shown on the "declarations" or "other insurance", whichever is greater.

Coverage will not be provided under Coverage U when:
 - a. the "underlying insurer" is bankrupt or insolvent as stated below under item 3., Bankruptcy of Underlying Insurer; or
 - b. "you" fail to maintain "underlying insurance" as stated under Condition 11., Maintenance of Underlying Insurance.
2. **Failure To Maintain Underlying Insurance -- Coverage E** -- If "you" fail to maintain "underlying insurance" as required by Condition 11., Maintenance of Underlying Insurance, the insurance provided by this policy will not replace such "underlying insurance" but will apply as if the "underlying insurance" were valid and collectible.
3. **Bankruptcy Of Underlying Insurer -- Coverages E and U** -- In the event of bankruptcy or insolvency of any "underlying insurer", the insurance provided by this policy will not replace such "underlying insurance", but will apply as if the "underlying insurance" were valid and collectible.

CONDITIONS

1. **Appeals** -- If an "underlying insurer" elects not to appeal a judgment in excess of the "limit" of any "underlying insurance", "we" may elect to make such appeal. If "we" so elect, "we" will be liable, in addition to the applicable "limit", for all expenses "we" incur that pertain to such appeal.
2. **Assignment** -- This policy may not be assigned without "our" written consent.
3. **Bankruptcy Of An Insured** -- Bankruptcy or insolvency of an "insured" does not relieve "us" of "our" obligations under this policy.
4. **Cancellation** -- "You" may cancel this policy by returning the policy to "us" or by giving "us" written notice and stating at what future date coverage is to stop.

"We" may cancel this policy by written notice sent to "you" at "your" last mailing address known to "us". If notice of cancellation is mailed, proof of mailing will be sufficient proof of notice.

If "we" cancel this policy for nonpayment of premium "we" will give "you" notice at least 10 days before cancellation is effective. If "we" cancel this policy for any other reason, "we" will give "you" notice at least 30 days in advance of cancellation. The notice will state the time that the cancellation is to take effect.

"Your" return premium, if any, will be calculated according to "our" rules. It will be refunded to "you" with the cancellation notice or within a reasonable time. Payment or tender of the unearned premium is not a condition of cancellation.
5. **Change, Modification, Or Waiver Of Policy Terms** -- A waiver or change of the "terms" of this policy must be issued by "us" in writing to be valid.

6. **Conformity With Statute** -- "Terms" of this policy in conflict with the laws of the state where this policy is issued are changed to conform to such laws.
7. **Examination of Books and Records** -- "We" may examine and audit "your" books and records that relate to this policy during the policy period and within three years after the policy has expired.
8. **Inspection** -- "We" have the right, but are not obligated, to inspect "your" property and operations at any time. This inspection may be made by "us" or may be made on "our" behalf. An inspection or its resulting advice or report does not warrant that "your" property or operations are safe, healthful, or in compliance with laws, rules, or regulations. Inspection or reports are for "our" benefit only.
9. **Knowledge of Bodily Injury or Property Damage** -- Knowledge of "bodily injury" or "property damage" will be deemed to have occurred at the earliest of the following times:
 - a. when a "suit", "claim", or demand for "damages" alleging "bodily injury" or "property damage" is received by any "designated insured";
 - b. when any "designated insured" reports the "bodily injury" or "property damage" to "us" or any other insurer; or
 - c. when any "designated insured" becomes aware of anything that indicates that "bodily injury" or "property damage" may have occurred or is occurring.
10. **Legal Action Against Us** -- No legal action may be brought against "us" unless:
 - a. all "terms" of this policy have been complied with; and

- b. the amount of an "insured's" liability has been determined by:
 - 1) a final judgment against an "insured" as a result of a trial; or
 - 2) a written agreement of the "insured", the claimant, and "us".

No person has a right under this policy to join "us" or implead "us" in actions that are brought to fix the liability of an "insured".

11. **Maintenance Of Underlying Insurance** -- "You" must maintain the "underlying insurance" in full force and effect during the term of this policy.

If any "underlying insurance" is canceled or not renewed and not replaced or is at any time materially changed in "limits" or coverages, "you" must notify "us" at once. "We" will not be liable under this policy for more than "we" would have been liable if that "underlying insurance" had not been terminated or had been kept at its original "limits" or coverages.

Reduction or exhaustion of any aggregate "limit" in any "underlying insurance" by payments for judgments, settlements, or expenses for "occurrences" or offenses during the policy period of this policy will not be a failure to maintain "underlying insurance" in full force and effect.

No statement contained in this condition limits "our" right to cancel or not renew this policy.

12. **Misrepresentation, Concealment, or Fraud** -- This coverage is void as to "you" and any other "insured" if, before or after a loss:
 - a. "you" or any other "insured" has willfully concealed or misrepresented:
 - 1) a material fact or circumstance that relates to this insurance or the subject thereof; or

- 2) the "insured's" interest herein; or
 - b. there has been fraud or false swearing by "you" or any other "insured" with regard to a matter that relates to this insurance or the subject thereof.
13. **Subrogation** -- If "we" pay under the Commercial Umbrella/Excess Liability Coverage, "we" may require from an "insured" an assignment of any right of recovery. "We" are not liable under the Commercial Umbrella/Excess Liability Coverage if any "insured" has impaired "our" right to recover. An "insured" may waive its right to recover, in writing, before an "occurrence" takes place.

14. **Transfer Of Your Rights And Duties Under This Policy** -- "Your" rights and duties under this policy may not be transferred without "our" written consent except in the case of "your" death.

If "you" die, "your" rights and duties will be transferred to "your" legal representative but only while acting within the scope of duties as "your" legal representative. Until "your" legal representative is appointed, anyone having proper temporary custody of "your" property will have "your" rights and duties, but only with respect to that property.

NUCLEAR ENERGY LIABILITY EXCLUSION

This insurance does not apply:

- 1. under any liability coverage, to "bodily injury" or "property damage":

- a. with respect to which an "insured" under the policy is also an insured under a Nuclear Energy Liability policy issued by Nuclear Energy Liability Insurance Association, Mutual Insurance Company, Atomic Energy Insurance Company, or any of their successors, or would be an "insured" under any such policy but for its termination upon exhaustion of its "limit" of liability; or
 - b. resulting from the "hazardous properties" of "nuclear material" and with respect to which:
 - 1) any person or organization is required to maintain financial protection pursuant to the Atomic Energy Act of 1954, or any law amendatory thereto; or
 - 2) the "insured" is, or had this policy not been issued would be, entitled to indemnity from the United States of America or any agency thereof, under any agreement entered into by the United States of America or any agency thereof, with any person or organization.
2. under any liability coverage, to "bodily injury" or "property damage" resulting from the "hazardous properties" of "nuclear material", if:
- a. the "nuclear material":
 - 1) is at any "nuclear facility" owned by, operated by, or on behalf of an "insured"; or
 - 2) has been discharged or dispersed therefrom;
 - b. the "nuclear material" is contained in "spent fuel" or "waste" at any time possessed, handled, used, stored, processed, transported, or disposed of by or on behalf of an "insured"; or

- c. the "bodily injury" or "property damage" arises out of the furnishing by an "insured" of services, materials, parts, or equipment in connection with the planning, construction, maintenance, operation, or use of any "nuclear facility", but if such facility is located within the United States of America, its territories or possessions, or Canada, this exclusion (c.) applies only to "property damage" to such "nuclear facility" and any property thereat.

DEFINITIONS

The following definitions apply to the Nuclear Energy Liability Exclusion:

- 1. "Hazardous properties" include radioactive, toxic, or explosive properties.
- 2. "Nuclear material" means "source material", "special nuclear material", or "by-product material".
- 3. "Source material", "special nuclear material", and "by-product material" have the meanings given them in the Atomic Energy Act of 1954, or in any law amendatory thereof.
- 4. "Spent fuel" means any fuel element or fuel component, solid or liquid, which has been used or exposed to radiation in a "nuclear reactor".
- 5. "Waste" means any "waste" material:
 - a. containing "by-product material" other than the tailings or "wastes" produced by the extraction of uranium or thorium from any ore processed primarily for its "source material" content; and
 - b. resulting from the operation by any person or organization of any "nuclear facility" included under the first two paragraphs of the definition of "nuclear facility".

- 6. "Nuclear facility" means:

- a. any "nuclear reactor";
- b. any equipment or device designed or used for:
 - 1) separating the isotopes of uranium or plutonium;
 - 2) processing or utilizing "spent fuel"; or
 - 3) handling, processing, or packaging "waste";
- c. any equipment or device used for the processing, fabricating, or alloying of "special nuclear material" if at any time the total amount of such material in the custody of the "insured" at the premises where such equipment or device is located consists of or contains more than 25 grams of plutonium or uranium-233 or any combination thereof, or more than 250 grams of uranium-235; or
- d. any structure, basin, excavation, premises, or place prepared or used for the storage or disposal of "waste";

and includes the site on which any of the foregoing is located, all operations conducted on such sites, and all premises used for such operations.

- 7. "Nuclear reactor" means any apparatus designed or used:
 - a. to sustain nuclear fission in a self supporting chain reaction; or
 - b. to contain a critical mass of fissionable material.
- 8. "Property damage" includes all forms of radioactive contamination of property.

**EXCLUSION -- DAMAGE TO WORK PERFORMED
BY YOU OR ON YOUR BEHALF**

The Commercial Umbrella/Excess Liability
Coverage is amended as follows:

EXCLUSIONS

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE E**

The following exclusion is added under Coverage
E:

"We" do not pay for "property damage" to "your
work" if the "property damage" arises out of "your
work" and is included in the "products/completed
work hazard".

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE U**

Exclusion 22. is deleted and replaced by the
following:

"We" do not pay for "property damage" to "your
work" if the "property damage" arises out of "your
work" and is included in the "products/completed
work hazard".

UM 0203 04 02

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EXCLUSION -- EXTERIOR INSULATION AND FINISH SYSTEMS

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

DEFINITIONS

The following definition is added:

"EIFS" means an exterior wall cladding or finish system used on any part of any structure consisting of:

1. a rigid or semi-rigid insulation board made of expanded polystyrene or other materials;
2. an adhesive or mechanical attachment of the insulation board to the substrate;
3. a reinforced base coat on the face of the insulation board or base coat and mesh;
4. a protective finish applied to the surface of the base coat providing surface texture to which color may be added; and
5. any conditioners, primers, accessories, flashings, coatings, caulking, and sealants that interact to form an energy efficient wall.

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusions are added:

1. "We" do not pay for actual or alleged "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the design, manufacture, sale, service, construction, fabrication, preparation, installation, application, maintenance, or repair, including any remodeling, correction, or replacement of an "EIFS" or any part thereof, or any substantially similar system or any part thereof, including any method or procedure to correct problems with installed or partially installed systems performed by or on behalf of an "insured".
2. "We" do not pay for actual or alleged "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of "your work" and that results directly or indirectly from any exterior component, fixture, or feature of any structure if an "EIFS" is used on any part of that structure.
3. "We" do not pay for actual or alleged "bodily injury" or "property damage" included in the "products/completed work hazard" and that results directly or indirectly from any exterior component, fixture, or feature of any structure if an "EIFS" is used on any part of that structure.
4. "We" do not pay for "bodily injury" or "property damage" liability assumed by an "insured" under a contract or agreement for the design, manufacture, sale, service, construction, fabrication, preparation, installation, application, maintenance, repair, including any remodeling, correction, or replacement of an "EIFS" or any part thereof, or any substantially similar system or any part thereof.

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE U**

The following exclusions are added:

1. "We" do not pay for actual or alleged "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the design, manufacture, sale, service, construction, fabrication, preparation, installation, application, maintenance, or repair, including any remodeling, correction, or replacement of an "EIFS" or any part thereof, or any substantially similar system or any part thereof, including any method or procedure to correct problems with installed or partially installed systems performed by or on behalf of an "insured".
2. "We" do not pay for actual or alleged "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of "your work" and that results directly or indirectly from any exterior component, fixture, or feature of any structure if an "EIFS" is used on any part of that structure.
3. "We" do not pay for actual or alleged "bodily injury" or "property damage" included in the "products/completed work hazard" and that results directly or indirectly from any exterior component, fixture, or feature of any structure if an "EIFS" is used on any part of that structure.
4. "We" do not pay for "bodily injury" or "property damage" liability assumed by an "insured" under a contract or agreement for the design, manufacture, sale, service, construction, fabrication, preparation, installation, application, maintenance, or repair, including any remodeling, correction, or replacement of an "EIFS" or any part thereof, or any substantially similar system or any part thereof.

UM 0205 04 02

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EXCLUSION -- WAR AND MILITARY ACTION COVERAGES E AND U

The Commercial Umbrella/Excess Liability
Coverage is amended as follows:

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusion is added:

"We" do not pay for any injury or damage caused directly or indirectly by the following. Such injury or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss.

- a. War, including undeclared or civil war; or
- b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign, or other authority using military personnel or other agents; or
- c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

EXCLUSIONS THAT APPLY ONLY TO COVERAGE U

Exclusion 9. is deleted and replaced by the following:

"We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" caused directly or indirectly by the following. Such injury or damage is excluded regardless of any other cause or event that contributes concurrently or in any sequence to the loss.

- a. War, including undeclared or civil war; or
- b. Warlike action by a military force, including action in hindering or defending against an actual or expected attack, by any government, sovereign, or other authority using military personnel or other agents; or
- c. Insurrection, rebellion, revolution, usurped power, or action taken by governmental authority in hindering or defending against any of these.

UM 0206 01 08

**EXCLUSION -- NON-OWNED AUTO LIABILITY COVERAGE
HIRED AUTO LIABILITY COVERAGE
COVERAGE E**

The Commercial Umbrella/Excess Liability
Coverage is amended as follows:

DEFINITIONS

The following definitions are added:

1. "Hired auto" means an "auto" "you" lease, hire, or borrow on an occasional or infrequent basis. It does not include an "auto" "you" lease, hire, or borrow from:
 - a. any of "your" "employees" or members of their households; or
 - b. any of "your" partners, executive officers, or managers (if "you" are a limited liability company) or members of their households.
2. "Non-owned auto" means any "auto" "you" do not own, lease, hire, or borrow which is used in connection with "your" business. "Non-owned auto" includes any "auto" owned by "your" "employees" while used by "you" in connection with "your" business. If "you" are a partnership, a "non-owned auto" does not include any "auto" owned by any partner.

EXCLUSIONS

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE E**

The following exclusions are added under
Coverage E:

1. "We" do not pay for "bodily injury" or "property damage" arising out of the use of a "non-owned auto" in "your" business.
2. "We" do not pay for "bodily injury" or "property damage" arising out of the maintenance or use of a "hired auto" by "you" or "your" "employees" in the course of "your" business.

UM 0253 04 00

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**EXCLUSION -- CONTRACTUAL LIABILITY
COVERAGE U**

The Commercial Umbrella/Excess Liability
Coverage is amended as follows:

EXCLUSIONS

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE U**

Exclusion 31. is deleted and replaced by the
following:

31. "We" do not pay for the tort liability of another
which "you" assume under a contract or an
agreement to pay "damages" because of
"bodily injury", "property damage", "personal
injury", or "advertising injury" to a third party
or organization.

This exclusion does not apply to liability an
"insured" would have had in the absence of
the contract or agreement.

UM 0254 04 00

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**EXCLUSION -- REAL AND PERSONAL PROPERTY
CARE, CUSTODY, AND CONTROL
COVERAGES E AND U**

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusion is added under Coverage E:

"We" do not pay for "property damage" to real or personal property:

1. owned by, occupied by, or rented to "you";
2. used by the "insured"; or
3. in the care, custody, or control of the "insured".

EXCLUSIONS THAT APPLY ONLY TO COVERAGE U

Exclusions 17. and 18. are deleted and replaced by the following:

17. "We" do not pay for "property damage" to real property:

- a. owned by, occupied by, or rented to "you";
- b. used by the "insured"; or
- c. in the care, custody, or control of the "insured".

18. "We" do not pay for "property damage" to personal property:

- a. owned by, occupied by, or rented to "you";
- b. used by the "insured"; or
- c. in the care, custody, or control of the "insured".

UM 0272 04 00

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**KNOWN INJURY OR DAMAGE AMENDMENTS
COVERAGE E**

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

PRINCIPAL COVERAGES

Under Principal Coverages, Coverage E -- Excess Liability item 1. is amended by the addition of the following:

This insurance does not apply to "bodily injury" or "property damage" which is a continuation of, resumption of, or change in "bodily injury" or "property damage" t
d insuredIRONVALE FABRICATION
period. If
under the Knowledge of Bodily Injury or
Property Damage Condition, prior to the
inception date of this policy period, that "bodily
injury" or "property damage" had occurred, any
continuation of, resumption of, or change in such
"bodily injury" or "property damage" will be
deeme
insuredIRONVALE FABRICATION
period.

"Bodily injury" or "property damage" that occurs during this policy period and which is not a continuation of, resumption of, or change in "bodily injury" or "property damage" which was known by a "designated insured", as stated under the Knowledge of Bodily Injury or Property Damage Condition, to have occurred prior to the inception of this policy period, will include any continuation of, resumption of, or change in such "bodily injury" or "property damage" after the end of this policy period.

DEFENSE COVERAGE

Defense is amended by the addition of the following:

Under Coverage E, "we" have no duty to defend a "suit" or "claim" seeking "damages" because of "bodily injury" or "property damage" which was known by a "designated Insured" as stated under the Knowledge of Bodily Injury or Property Damage Condition, prior to the inception date of this policy period.

DIRECTORS AND OFFICERS LIABILITY EXCLUSION COVERAGE E

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusion is added under Coverage E:

"We" do not pay for injury or damage arising out of or resulting from any act, error, omission, or breach of duty committed by anyone while acting within the scope of their duties as a director or officer of the "insured".

**EXCLUSION -- EMPLOYMENT RELATED PRACTICES LIABILITY
COVERAGE E**

The Commercial Umbrella/Excess Liability
Coverage is amended as follows:

EXCLUSIONS

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE E**

The following exclusion is added under Coverage
E:

"We" do not pay for injury or damage arising out
of any:

1. refusal to employ;

2. termination of employment
3. coercion, demotion, evaluation,
reassignment, discipline, defamation,
harassment, humiliation, discrimination,
sexual misconduct, or other employment
related practices, policies, acts, or omissions;
or
4. consequential "bodily injury" or "personal
injury" as a result of 1., 2., or 3. above.

This exclusion applies where the "insured" is
liable either as an employer or in any other
capacity; or there is an obligation to fully or
partially reimburse a third party for "damages"
arising out of 1., 2., 3., or 4. above.

EXCLUSION -- EMPLOYEE BENEFITS LIABILITY COVERAGE E

The Commercial Umbrella/Excess liability
Coverage is amended as follows:

DEFINITIONS

The following definitions are added:

1. "Employee Benefit Program" means one or more of the following types of plans, or insurance maintained by "you" for the benefit of "your" "employees":
 - a. group life insurance or group accident and health insurance;
 - b. profit sharing plans, pension plans, retirement plans, or employee stock subscription plans;
 - c. workers compensation, unemployment insurance, salary continuation plans, social security benefits, or disability benefits insurance;
 - d. travel plans, savings plans, or vacation plans; or
 - e. any other type of insurance or plan described in the schedule.
2. "Administration" means performing the following acts for the "Employee Benefit Program":
 - a. giving counsel to "employees";
 - b. interpreting the "Employee Benefit Program";

- c. handling and maintenance of records;
 - d. effecting enrollment, termination, or cancellation of "employees";
 - e. calculating service and compensation credits;
 - f. calculating benefits;
 - g. preparing "employee" communication material, reports required by government agencies, and reports concerning participants' benefits;
 - h. processing claims; or
 - i. collection of contributions and distributions thereof;
- provided all of these acts are authorized by "you".

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusion is added under Coverage E:

"We" do not pay for injury or damage an "insured" becomes legally obligated to pay arising from a "claim" or "suit" for injury to an "employee" caused by the negligent act, error, or omission of the "insured" in the "administration" of an "Employee Benefit Program".

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**EXCLUSION -- CROSS LIABILITY
COVERAGES E AND U**

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

EXCLUSIONS

**EXCLUSIONS THAT APPLY ONLY TO COVERAGE E
EXCLUSIONS THAT APPLY ONLY TO COVERAGE U**

The following exclusion is added under both Coverages E and U:

This insurance does not cover "bodily injury" or "personal injury" to an "insured".

**PUNITIVE DAMAGES EXCLUSION
COVERAGES E AND U**

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

EXCLUSIONS

**EXCLUSIONS THAT APPLY ONLY TO COVERAGE E
EXCLUSIONS THAT APPLY ONLY TO COVERAGE U**

The following exclusion is added under both Coverages E and U:

This policy does not cover punitive, exemplary, or vindictive "damages".

SILICA EXCLUSION COVERAGES E AND U

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

DEFINITIONS

The following definition is added:

"Silica" means silicon dioxide (SiO₂) including:

1. crystalline silica, silica dust, industrial sand, silica sand, quartz, quartz dust, cristobalite, tridymite, tripoli, and including silica mixed with other compounds;
2. amorphous silica and silica gel; and
3. silica dust mixed with other dust particles.

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusions are added under Coverage E:

"We" do not pay for:

1. "bodily injury" arising out of the actual, alleged, or threatened ingestion, inhalation, or absorption of "silica";
2. "property damage" arising out of the actual, alleged, or threatened prolonged exposure to "silica";

3. any other injury that is covered by "underlying insurance" on a "claims-made" basis arising out of the actual, alleged, or threatened ingestion of, inhalation of, absorption of, contact with, existence of, exposure to, or presence of "silica"; or
4. any loss, cost, or expense arising out of the testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of "silica" by any "insured" or any other person or organization.

EXCLUSIONS THAT APPLY ONLY TO COVERAGE U

The following exclusions are added under Coverage U:

"We" do not pay for:

1. "bodily injury" arising out of the actual, alleged, or threatened ingestion, inhalation, or absorption of "silica";
2. "property damage" arising out of the actual, alleged, or threatened prolonged exposure to "silica";
3. any loss, cost, or expense arising out of the testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of "silica" by any "insured" or any other person or organization.

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**TELEPHONE CONSUMER PROTECTION ACT OF 1991, CAN-SPAM
ACT OF 2003, AND OTHER INFORMATION DISTRIBUTION
VIOLATIONS EXCLUSION
COVERAGES E AND U**

The Commercial Umbrella/Excess Liability
Coverage is amended as follows:

EXCLUSIONS

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE E**

The following exclusions are added under
Coverage E:

"We" do not pay for:

1. bodily injury", "property damage", "personal injury", or "advertising injury" arising directly or indirectly out of violations of or alleged violations of:
 - a. the Telephone Consumer Protection Act of 1991(TCPA), including any amendments thereto, and any similar federal, state, or local laws, ordinances, statutes, or regulations;
 - b. the CAN-SPAM Act of 2003, including any amendments thereto, and any similar federal, state, or local laws, ordinances, statutes, or regulations; or
 - c. any federal, state, or local law, regulation, statute, or ordinance, other than the TCPA or the CAN-SPAM Act of 2003, that limits or prohibits the communicating, transmitting, sending, or distribution of material or information.

2. any other injury that is covered by "underlying insurance" on a "claims-made" basis arising directly or indirectly out of violations of or alleged violations of:
 - a. the Telephone Consumer Protection Act of 1991 (TCPA), including any amendments thereto, and any similar federal, state, or local laws, ordinances, statutes, or regulations;
 - b. the CAN-SPAM Act of 2003, including any amendments thereto, and any similar federal, state, or local laws, ordinances, statutes, or regulations; or
 - c. any federal, state, or local law, regulation, statute, or ordinance, other than the TCPA or the CAN-SPAM Act of 2003, that limits or prohibits the communicating, transmitting, sending, or distribution of material or information.

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE U**

The following exclusion is added under Coverage U:

"We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" arising directly or indirectly out of violations of or alleged violations of:

- a. the Telephone Consumer Protection Act of 1991 (TCPA), including any amendments thereto, and any similar federal, state, or local laws, ordinances, statutes, or regulations;
- b. the CAN-SPAM Act of 2003, including any amendments thereto, and any similar federal, state, or local laws, ordinances, statutes, or regulations; or

- c. any federal, state, or local law, regulation, statute, or ordinance, other than the TCPA or the CAN-SPAM Act of 2003, that limits or prohibits the communicating, transmitting, sending, or distribution of material or information.

ASBESTOS EXCLUSION COVERAGES E AND U

The Commercial Umbrella/Excess Liability
Coverage is amended as follows:

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusions are added under
Coverage E:

"We" do not pay for:

1. "bodily injury" arising out of the actual, alleged, or threatened ingestion, inhalation, or absorption of asbestos, asbestos products, asbestos fibers, or asbestos dust;
2. "property damage" arising out of the actual, alleged, or threatened contact with, existence of, exposure to, or presence of asbestos, asbestos products, asbestos fibers, or asbestos dust;
3. "personal injury" or "advertising injury" arising out of the actual, alleged, or threatened ingestion of, inhalation of, absorption of, contact with, existence of, exposure to, or presence of asbestos, asbestos products, asbestos fibers, or asbestos dust;
4. any other injury that is covered by "underlying insurance" on a "claims-made" basis arising out of the actual, alleged, or threatened ingestion of, inhalation of, absorption of, contact with, existence of, exposure to, or presence of asbestos, asbestos products, asbestos fibers, or asbestos dust; or

5. any loss, cost, or expense arising out of the testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of asbestos, asbestos products, asbestos fibers, or asbestos dust by any "insured" or any other person or organization.

EXCLUSIONS THAT APPLY ONLY TO COVERAGE U

The following exclusions are added under
Coverage U:

"We" do not pay for:

1. "bodily injury" arising out of the actual, alleged, or threatened ingestion, inhalation, or absorption of asbestos, asbestos products, asbestos fibers, or asbestos dust;
2. "property damage" arising out of the actual, alleged, or threatened contact with, existence of, exposure to, or presence of asbestos, asbestos products, asbestos fibers, or asbestos dust;
3. "personal injury" or "advertising injury" arising out of the actual, alleged, or threatened ingestion of, inhalation of, absorption of, contact with, existence of, exposure to, or presence of asbestos, asbestos products, asbestos fibers, or asbestos dust; or
4. any loss, cost, or expense arising out of the testing for, monitoring, cleaning up, removing, containing, treating, detoxifying, neutralizing, or in any way responding to or assessing the effects of asbestos, asbestos products, asbestos fibers, or asbestos dust by any "insured" or any other person or organization.

UM 0319 10 05

AMENDATORY ENDORSEMENT NEW YORK

1. Under Definitions, the definition of "bodily injury" is deleted and replaced by the following:

"Bodily injury" means bodily harm, sickness, or disease sustained by a person and includes required care and loss of services. "Bodily injury" includes death that results from bodily harm, sickness, or disease.
2. Under Definitions, the definition of "loading or unloading" is deleted.
3. Under Definitions, the meaning of "pollutant" is deleted and replaced by the following:

Pollutant means any solid, liquid, gaseous, or thermal irritant or contaminant, including acids, alkalis, chemicals, fumes, smoke, soot, vapor, and waste. Waste includes materials to be disposed of as well as recycled, reclaimed, or reconditioned.
4. Under Defense Coverage, the following is added:

Under Coverages E and U, "we" will defend a "suit" seeking "damages" which may be covered under the Commercial Umbrella/Excess Liability Coverage, even if the allegations of the "suit" are false, groundless, or fraudulent.
5. Under Defense Coverage, item 4. is deleted and replaced by the following:

"We" do not have to provide a defense after "we" have paid an amount equal to the "limit" as a result of:
 - a. a judgment; or
 - b. a written settlement agreed to by "us" with the consent of the "insured". However, if the "insured" refuses any settlement mutually agreed upon by "us" and the plaintiff that "we" recommend in writing and elects to contest or continue any legal proceedings, "our" liability will not exceed the amount for which the "claim" could have been settled plus the costs and expenses incurred to the date of such refusal.
6. Under What Must Be Done In Case Of Loss, item 2. is deleted and replaced by the following:
 2. Notice
 - a. "You" must see to it that "we" receive notice as soon as reasonably possible of an "occurrence", offense, "claim", or "suit" to which this insurance may apply.

Notice given by or on behalf of the "insured", or written notice by or on behalf of the injured person or any other claimant, to any of "our" agents in the state, with sufficient information to identify the "insured", will be notice to "us".

To the extent possible, the notice to "us" should state:
 - 1) the name of the "insured"; the policy number; and the time, place, and details of the "occurrence" or offense; and
 - 2) the names and addresses of all known potential claimants and witnesses.

- b. Failure to give any notice required to be given by the policy within the time specified therein will not invalidate any claim made by an "insured", an injured person, or any other claimant if:

- 1) it is shown not to have been reasonably possible to give such notice within the prescribed time and notice was given as soon as reasonably possible thereafter; or
- 2) the failure to provide timely notice did not prejudice "us".

7. Under Conditions, Bankruptcy Of An Insured is deleted and replaced by the following:

Bankruptcy -- Bankruptcy or insolvency of an "insured" or the estate of an "insured" does not relieve "us" of obligations under this policy that "we" incur during the policy term.

8. Under Conditions, the Cancellation condition is deleted and replaced by the following:

Cancellation, Nonrenewal, and Conditional Renewal --

- a. "You" may cancel this policy by returning the policy to "us" or by giving "us" written notice and stating at what future date coverage is to stop.

"We" may cancel this policy by written notice to "you" at the address shown on the "declarations" and to "your" authorized agent or broker. "Our" notice will specify the grounds for cancellation. Proof of delivery or mailing is sufficient proof of notice. If "we" cancel this policy for nonpayment of premium, "our" notice will include the amount of premium due.

If this policy has been in effect 60 days or less, "we" may cancel for any reason.

If this policy has been in effect for more than 60 days, or if it is a renewal of a policy issued by "us", "we" may cancel only for one or more of the following reasons:

- 1) the premium has not been paid when due;
- 2) "your" conviction of a crime arising out of a _____ aising the hazard insured ASHCROFT
- 3) discove _____ d or material misrepresentation in obtaining the policy or in the presentation of a claim thereunder;
- 4) after issuance of the policy or after the last renewal date, discovery of an act or omission, or a violation of any policy condition that substantially and material insured RIDGEWAY CONTRACTING subseq current policy period;
- 5) material physica property insuredNORTHVALE SERVICE issuance or last anniversary date of the policy, which results in the property becoming uninsurable in accordance with "our" objective, uniformly-applied underwriting standards in effect at the time the policy was issued or last renewed; or material chan e or extent of the risk issuance or last ann ersary date of the policy, which causes the risk of loss to be substantially and materially increased beyond that contemplated at the time the policy was issued or last renewed;
- 6) a determination by the Superintendent of Insurance that continuation of "our" present premium volume would jeopardize "our" solvency or be hazardous to the interests of "our" policyholders, creditors, or the public;

- 7) a determination by the Superintendent that a continuation of the policy would violate, or would place "us" in violation of, any provision of New York Insurance Laws; or
- 8) where "we" have reason to believe, in good faith and with sufficient cause, that there is a probable risk or danger that "you" will destroy, or permit to be destroyed, "your" property for the purpose of collecting the insurance proceeds.

If "we" cancel this policy for any of the reasons listed in a.1) through a.8) above, "we" will mail or deliver written notice at least 15 days before cancellation is effective.

In addition to reasons a.1) through a.8) above, this policy may be canceled if one or more policies that are "underlying insurance" for this policy are canceled and not replaced without a lapse in coverage. Cancellation of the "underlying insurance" must be based upon reasons a.1) through a.8) above or if the "underlying insurance" is a professional liability insurance policy, cancellation may be based on revocation or suspension of "your" license to practice "your" profession or, if "you" are a hospital, "you" no longer possess a valid operating certificate under Section 2801-a of the Public Health Law. If "we" cancel for these reasons, "we" will provide notice at least 20 days before cancellation is effective if "we" cancel in the first 60 days or "we" will provide notice at least 15 days before cancellation is effective if "we" cancel after the policy has been in effect for more than 60 days.

If "we" cancel this policy for any other reason during the first 60 days this policy is in effect, "we" will mail or deliver written notice at least 20 days before cancellation is effective.

If "we" cancel this policy for reason a.8) above, "we" will advise "you" that "you" must act within ten days if "you" desire a review by the Insurance Department. "We" will also simultaneously notify the Insurance Department of "our" cancellation of "your" policy.

- b. "We" may not renew or not renew with the same "terms", conditions, or rates, this policy b the address fqvst sm rhm "juejarqgqkai" and to "your Proof of delivery or mailing is sufficient proof of notice. These nonrenewal or conditional renewal requirements will not apply when "you", an agent or broker authorized by "you", or another insurer of "yours" has mailed or delivered written notice to "us" that the policy has been replaced or is no longer desired.

If "we" do not renew this policy, "we" will mail or deliver written notice at least 60 days, but not more than 120 days, before the end of the policy period or the anniversary date. "Our" notice will specify the grounds for nonrenewal.

If "we" decide not to renew this policy with the same "terms", conditions, or rates, "we" will mail or deliver written notice of conditional renewal at least 60 days, but not more than 120 days, before the end of the policy period or anniversary date. "Our" notice will state the reasons for conditional renewal and set forth the amount of any premium increase and the nature of any other proposed changes. This provision applies to renewal conditioned upon change of "limits", change in type of coverage, reduction of coverage, increased deductible, addition of exclusion, or upon increased premiums in excess of 10% (exclusive of any premium increase generated as a result of increased exposure units or as a result of experience rating or loss rating).

If "we" notify "you" of "our" intent not to renew or not to renew with the same "terms", conditions, and rates:

- 1) at least 30 days, but less than 60 days, prior to the expiration date of the policy, coverage will continue on the same "terms" and conditions as the expiring policy and at the lower of the current rates or the prior policy period rates, until 60 days after the notice is mailed or delivered to "you". If "we" offer to renew with different "terms", conditions, or rates and "you" elect to renew the coverage, the "terms", conditions, and rates set forth in the conditional notice apply as of the renewal date; or
- 2) less than 30 days prior to the expiration date of the policy, coverage will continue on the same "terms" and conditions as the expiring policy, and at the lower of the current rates or the prior policy period rates, until 60 days after the notice is mailed or delivered to "you". If "we" offer to renew with different "terms", conditions, or rates and "you" elect to renew the coverage, the "terms", conditions, and rates set forth in the conditional notice apply after the expiration of the 60 day period; or
- 3) on or after the expiration date of the policy, coverage will continue on the same "terms" and conditions as the expiring policy for another required policy period; and at the lower of the current rates or the prior policy period rates.

Required policy period means a period of one year from the date as of which a covered policy is renewed or first issued.

- c. As an alternative, "we" may notify "you", in writing, at the address shown in the policy and "your" authorized agent or broker of "our" intent not to renew or not to renew with the same "terms", conditions, and rates by giving written notice at least 60 days, but not more than 120 days, before the expiration date of the policy. In that case, coverage will continue on the same "terms", conditions, and rates until either:

- 1) the expiration date; or
- 2) 60 days after "we" give a second notice which indicates "our" decision to either not renew this policy or that this policy will be continued with changes in policy "terms", conditions, and rates;

whichever is later.

"Our" second notice will state either the reasons for nonrenewal or the reasons for conditional renewal and set forth the amount of any premium increase and the nature of any other proposed changes.

- d. If the policy period is extended, the aggregate "limits" of this policy will be increased in proportion to any policy period extension, and the last sentence under How Much We Pay will be deleted.
- e. "Your" return premium, if any, will be refunded at the time of cancellation or as soon as practical. Payment or tender of the unearned premium is not a condition of cancellation.

9. Under Conditions, Change, Modification, or Waiver of Policy Terms is deleted and replaced by the following:

Change, Modification, or Waiver of Policy Terms -- A waiver or change of the "terms" of this policy must be issued by "us" in writing to be valid. If, in the policy period, "we" adopt a revision which broadens coverage without an additional premium, the broadened coverage will apply. If a change in forms or endorsements reduces coverage or "limits", "we" must notify "you" as provided under the nonrenewal "terms" contained in this policy.

If this policy has no expiration date, "we" may substitute or "we" may add, at each anniversary date, forms that are then authorized for use.

10. Under Conditions, Examination of Books and Records is deleted and replaced by the following:

Examination of Books and Records -- "We" may examine and audit "your" books and records that relate to this policy during the policy period and within three years after the policy has expired.

- a. "We" will perform an audit to determine the final premium for policies if the initial premium is based on an estimate of "your" exposure base. This audit will be performed within 180 days after the expiration of the policy, unless the policy is continuous or for a period longer than one year, in which case the audit will be performed within 180 days of the anniversary date. This audit may not be waived except when the total annual premium attributable to the auditable exposure base is not reasonably expected to exceed \$1,500.
- b. "We" will, as soon as practical after such audit, refund or credit "your" account for any return premium due "you", or bill and make a good faith effort to collect any additional premium due "us" as a result of this audit.

- c. If "you" fail to cooperate with "us" in "our" attempt to conduct such audit, including failure to return any questionnaires or self-audit worksheets, "we" may nonrenew this policy upon completion of the current policy period, in accordance with the provisions of section 3426 of the Insurance Law, due to "our" inability to establish a proper premium for "you".

11. Under Conditions, Legal Action Against Us is deleted and replaced by the following:

Legal Action Against Us

- a. Except as stated under item b. below, no legal action may be brought against "us" unless:
- 1) all the "terms" of this policy have been complied with; and
 - 2) the amount of the "insured's" liability has been fixed by:
 - a) a final or summary judgment against an "insured" or an arbitration proceeding; or
 - b) a written agreement by the "insured", the claimant, and "us".

No person has a right under this policy to join "us" or implead "us" in actions that are brought to fix the liability of an "insured".

- b. With respect to all claims covered under this policy, other than property damage liability claims, if "we" disclaim liability or deny such claim for failure to give timely notice of the loss, the injured person or any other claimant may bring an action directly against "us", if the sole issue of that action is "our" disclaimer or denial based on failure to give timely notice.

However, the injured person or other claimant does not have the right to bring such action against "us" if, within 60 days following "our" disclaimer or denial, "we" or an "insured" bring an action for declaratory judgment on the rights of the parties under this coverage and name the injured person or other claimant as a party to that action.

12. Under Conditions, Misrepresentation, Concealment, or Fraud is deleted and replaced by the following:

Misrepresentation, Concealment, or

Fraud -- This policy is void if, when applying for coverage and as an inducement to issue the policy, "you" or someone "you" authorize, misrepresented to "us" a past or present fact that is material to the risk.

"We" do not provide coverage for an "insured" who has, before or after a loss:

- a. willfully concealed or misrepresented:
 - 1) a material fact or circumstance with respect to this insurance; or
 - 2) an "insured's" interest herein; or
- b. engaged in fraudulent conduct or sworn falsely with respect to this insurance or the subject thereof.

No misrepresentation will be considered material unless "our" knowledge of the facts misrepresented would have led "us" to refuse to issue the policy.

13. Under Conditions, Subrogation is deleted and replaced by the following:

Subrogation -- If "you" have rights to recover all or part of any payment "we" have made under this policy, "we" may require "you" to assign to "us" any right of recovery. "You" must do nothing after a loss to impair these rights. At "our" request, "you" must bring "suit" or transfer these rights to "us" and help "us" enforce them.

14. Under Conditions, the following condition is added:

Transfer of Defense Obligation --

- a. "We" will give "you" notice in writing if "we" determine it is likely that the:

- 1) Each Occurrence Limit;
- 2) General Aggregate Limit; or
- 3) Products/Completed Work Hazard Aggregate Limit;

will be used up in the payment of judgments or written settlements.

- b. "We" will give "you" notice in writing if a "limit" shown under item a. above has been used up in the payment of judgments or written settlements. "Our" notice to "you" will state that "our" duty to defend a "suit" seeking "damages" subject to the "limit" that has been used up has also ended.

When "our" duty to defend a "suit" ends because the "limit" has been used up, "we" will transfer the control of all claims and "suits" that have been reported to "us" before the applicable "limit" was used up to "you". "You" must cooperate with "us" in the transfer of control of such claims and "suits".

"We" will take no action to defend a claim or "suit" that is reported to "us" after the applicable "limit" has been used up.

- c. "You" must reimburse "us" for expenses "we" incur in transferring the control of claims and "suits" as described in item b. above. "Your" duty to reimburse "us" begins on:

- 1) the date on which the applicable "limit" is used up, if "we" sent "you" notice as described in item a. above; or
- 2) the date on which "we" sent "you" notice as described in item b. above, if "we" did not send "you" notice as described in item a. above.

- d. "Our" failure to comply with this condition will not affect other "terms" of this policy under How Much We Pay or the end of "our" duty to provide a defense after "we" have paid an amount equal to the "limit" as a result of judgments or written settlements.

15. Under Conditions, the following condition is added:

The insurance provided by this policy relating to coverage for operations in the State of New York will conform to the coverage requirements of the applicable insurance laws of the State of New York or the applicable regulations of the New York Insurance Department; provided, however, "our" liability as stated in this policy will be excess of the "limits" of "underlying insurance" or the retained "limit" stated in the "declarations" or any endorsement attached to the policy.

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EXCLUSION -- COMMUNICABLE DISEASE COVERAGES E AND U

The Commercial Umbrella/Excess Liability Coverage is amended as follows. All other "terms" of the policy apply, except as amended by this endorsement.

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE E

The following exclusions are added under Coverage E:

1. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the actual or alleged transmission of a communicable disease by:

- a. a person;
- b. an "insured's" property, including "products"; or
- c. the property of others in the care, custody, or control of an "insured".

This exclusion applies even if the "claim" or "suit" against any "insured" alleges negligence or other improper action in the:

- a. failure to report the communicable disease to proper authorities;
- b. failure to prevent the spread of the communicable disease;
- c. hiring, supervising, training, employing, or monitoring of others who may be infected with and spread a communicable disease; or

- d. testing or failure to test for a communicable disease.

However, this exclusion does not apply to "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the actual or alleged transmission of a communicable disease by an "insured", while the "insured" is engaged in the conduct of "your" business or occupation which requires physical contact with the public on an ongoing basis.

2. "We" do not pay for any loss, cost, or expense arising out of any:

- a. request, demand, or order that any "insured" or others test for, monitor, report, clean up, remove, contain, treat, detoxify, disinfect, sterilize, neutralize, or in any way respond to, assess the effects of, or eliminate a communicable disease or the conditions to which a communicable disease is attributed; or
- b. "claim" or "suit" by or on behalf of any governmental body or authority relating to testing for, monitoring, reporting, cleaning up, removing, containing, treating, detoxifying, disinfecting, sterilizing, neutralizing, or in any way responding to, assessing the effects of, or eliminating a communicable disease or the conditions to which a communicable disease is attributed.

However, this exclusion does not apply to any loss, cost, or expense arising out of any request, demand, order, "claim", or "suit" that results from the actual or alleged transmission of a communicable disease by an "insured", while the "insured" is engaged in the conduct of "your" business or occupation which requires physical contact with the public on an ongoing basis.

**EXCLUSIONS THAT APPLY ONLY TO
COVERAGE U**

The following exclusions are added under
Coverage U:

1. "We" do not pay for "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the actual or alleged transmission of a communicable disease by:

- a. a person;
- b. an "insured's" property, including "products"; or
- c. the property of others in the care, custody, or control of an "insured".

This exclusion applies even if the "claim" or "suit" against any "insured" alleges negligence or other improper action in the:

- a. failure to report the communicable disease to proper authorities;
- b. failure to prevent the spread of the communicable disease;
- c. hiring, supervising, training, employing, or monitoring of others who may be infected with and spread a communicable disease; or
- d. testing or failure to test for a communicable disease.

However, this exclusion does not apply to "bodily injury", "property damage", "personal injury", or "advertising injury" that arises out of the actual or alleged transmission of a communicable disease by an "insured", while the "insured" is engaged in the conduct of "your" business or occupation which requires physical contact with the public on an ongoing basis.

2. "We" do not pay for any loss, cost, or expense arising out of any:

- a. request, demand, or order that any "insured" or others test for, monitor, report, clean up, remove, contain, treat, detoxify, disinfect, sterilize, neutralize, or in any way respond to, assess the effects of, or eliminate a communicable disease or the conditions to which a communicable disease is attributed; or
- b. "claim" or "suit" by or on behalf of any governmental body or authority relating to testing for, monitoring, reporting, cleaning up, removing, containing, treating, detoxifying, disinfecting, sterilizing, neutralizing, or in any way responding to, assessing the effects of, or eliminating a communicable disease or the conditions to which a communicable disease is attributed.

However, this exclusion does not apply to any loss, cost, or expense arising out of any request, demand, order, "claim", or "suit" that results from the actual or alleged transmission of a communicable disease by an "insured", while the "insured" is engaged in the conduct of "your" business or occupation which requires physical contact with the public on an ongoing basis.

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Important Notice

**This endorsement only applies to worksites within
the State of New York**

**Exclusion of Injury to Employees,
Contractors and Employees of Contractors**

The following verbiage is added to the Commercial Umbrella/Excess Liability Coverage Form.

This insurance does not apply to:

- (i) bodily injury to any employee of any insured, to any contractor hired or retained by or for any insured or to any employee of such contractor, if such claim for bodily injury arises out of and in the course of his/her employment or retention of such contractor by or for any insured, for which any insured may become liable in any capacity;
- (ii) any obligation of any insured to indemnify or contribute with another because of damage arising out of the bodily injury; or
- (iii) bodily injury sustained by the spouse, child, parent, brother or sister of an employee of any insured, or of a contractor, or of an employee of a contractor of any insured as a consequence of bodily injury to such employee, contractor or employee of such contractor, arising out of and in the course of such employment or retention by or for any insured.

This exclusion applies to all claims and suits by any person or organization for damages because of such bodily injury, including damages for care and loss of services.

COMMERCIAL SPRAY PAINTING EXCLUSION

COVERAGE U

The Commercial Umbrella/Excess Liability Coverage is amended as follows:

EXCLUSIONS

EXCLUSIONS THAT APPLY ONLY TO COVERAGE U

COMMERCIAL SPRAY PAINTING EXCLUSION

The following exclusion is added under Coverage U:

It is hereby understood that the insurance as if afforded by Coverage U does not apply to "Bodily Injury", "Property Damage", or "Products/Completed Work Hazard" damages resulting from any spray painting of the exterior or interior of any building or structure, except for a one to four family private residence and their appurtenant structures, fences, and fixtures.